



Appeal Decision

Site visit made on 3 August 2026

by D R Kay BA Dip.Arch RIBA

an Inspector appointed by the Secretary of State

Decision date: 17 August 2026

Appeal Ref: 6005194

35 Denmark Road, Poole, BH15 2DE

- The appeal is made under section 78 of the Town and Country Planning Act 1990 (as amended) against a refusal to grant outline planning permission.
 - The appeal is made by Mr S Tapper against the decision of Bournemouth Christchurch and Poole Council.
 - The application Ref is P/25/04005/OUT.
 - The development proposed is Outline planning permission with all matters reserved for the demolition of existing workshop / store and re-development of the site with 9 flats.
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Decision

1. The appeal is dismissed.

Preliminary Matters

2. The appeal scheme relates to an outline proposal, with all matters reserved for future consideration. I have therefore determined the appeal accordingly. A set of detailed drawings were submitted with the appeal, including floor plans, elevations, sections and a site plan, indicating an approach to development of the site. I have taken these drawings into account as being indicative for illustrative purposes only.
3. The description of development on the application form and in the plans initially submitted related to 10 flats. The description of development changed during the application to 9 flats, with amended drawings, and I have used the amended description agreed by the parties in the header and in my determination.

Main Issues

4. The main issues are:
 - whether the appeal site would be a suitable location for the proposed development, having regard to local and national planning policy; and
 - the effect of the development on the character and appearance of the local area, having particular regard to the significance of heritage assets; and
 - whether the development would provide acceptable living conditions for future occupiers and the effect of the development on the living conditions of occupiers of existing neighbouring properties with regard to overlooking and privacy; and
 - the effect of the proposal on international and nationally designated sites of importance for biodiversity.

Reasons

Location of Development

5. The existing building on the appeal site is described by the Council as being within use Class E(g)(iii) of the Use Classes Order 1987 (as amended). The proposal for 9 flats would change the use to a C3 residential use class. The site is located within an area which is surrounded by residential development. Further, it is not located within an area allocated for employment in the Poole Local Plan (2018) (the Local Plan).
6. Policy PP2 of the Local Plan directs residential development to the most accessible and therefore sustainable locations, these being the town centre, district and local centres and locations close to the sustainable transport corridors. The appeal site is located a short distance outside the defined town centre boundary, though it is within 500 metres walking distance of the town centre, the central railway and bus stations. It is therefore located within a sustainable transport corridor thus representing a highly sustainable location for residential development. This would also reflect the presumption in favour of sustainable development contained in the National Planning Policy Framework (the Framework).
7. However, Policy PP2 also makes recommendations for the density of development relative to the location of development sites. For locations within sustainable transport corridors, the table in Policy PP2 recommends a density of 50 homes per hectare. As the appeal site is 0.4 hectares that would equate to 20 homes. However, Policy PP2 acknowledges that the housing density needs to be considered on a case-by-case basis. Owing to the proximity and density of development immediately surrounding the appeal site, it would not be appropriate for it to be developed to such a density. The proposal is for 9 units, and I will examine the effects of the proposed density of development further below.
8. For the above reasons, I conclude that the principle of residential development of the appeal site would be acceptable. It therefore follows that I find it would accord with the spatial location elements of Policy PP2 of the Local Plan.

Character and Appearance and Heritage Assets

9. The appeal site consists of a rectangular portion of land described as being around 0.4 hectares in area. A substantial portion of the site is covered by a building which occupies the full width of the site. It is believed to have been constructed in the mid-20th century. It is two-storeys in height to its front and rear portions, with a single-storey section to the middle. All the building is flat roofed, with a mix of brickwork and horizontal painted timber cladding to its principal elevation, which faces Denmark Road, and with brickwork and render to its other elevations.
10. The principal elevation is set back by some distance from the rear of the footpath, such that it is almost in line with the rear elevation of the adjacent residential property at number 37 Denmark Road (No 37) to its north-east boundary, and around 2 metres behind the rear elevation of number 1 Cranes Mews (No 1), a residential property adjacent to its south-west boundary. The frontage between the principal elevation and the rear of the footpath is entirely covered in tarmac surface, providing parking space for up to 14 vehicles. A drop kerb is present to the full length of the frontage, though an on-street parking bay restricts access to the drop kerb and frontage for part of its length.

11. The appeal site sits outside of, but adjacent to, the Heckford Park Conservation Area (the CA), the south-western boundary of which abuts a substantial portion of the north-eastern boundary of the appeal site. The CA derives its significance, insofar as it relates to this appeal, from the area's historic origins as part of the Manor of Canford in the parish of Longfleet. The area underwent significant development in the Victorian era, resulting in the laying out of a regular pattern of streets, providing terraces of residential dwellings of human scale, set behind small frontage gardens, the dwellings being characterised by two-storey bay windows with gable roofs, and with good levels of detail and quality of materials to their principal elevations, much of which utilises polychromatic brickwork, providing a consistent character.
12. The property at No 37, and the terrace within which it is located to the north-east, are the only properties on Denmark Road which follow this pattern of development, and which are consequently included within the CA. The properties to the north-western side of Denmark Road, and to the south and south-west of the appeal site on Cranes Mews are properties of a mix of architectural styles, materials and ages, all of which lie outside the CA. Due to the age and design of the existing building on the appeal site, I find it does not contribute positively to the setting of the CA or the way in which it is experienced.
13. The indicative appeal proposal would replace the existing building with two blocks of development. Block A would be three-storeys in height, though the upper storey would be partially within the roof space, and would be located to the front of the site, its principal elevation would be in line with that of the adjacent property at No 37. This block would be sited alongside the gable wall of No 37 and would house six flats. It would be of a consistent depth as No 37, though its eaves level would be higher. It would have a three-storey rear offshoot which would follow the pattern of the adjacent terrace in the CA, though it would be both wider, longer and taller.
14. To the rear of the site would be Block B which would be two-storeys in height, though a portion would be single-storey, providing a roof terrace to its flat roof, enclosed by a head height obscure glazed balustrade to its open two sides. The block would occupy almost the full width of the site; its principal elevation being sited around half a metre in front of the principal elevation of the detached property immediately adjacent at number 2 Cranes Mews (No 2).
15. The distance between the opposing elevations of the two blocks would be limited, being around 7.4 metres, being used to provide access to Block B, access to three separate cycle stores, and to provide external amenity space for occupants of the flats. There would be no on-site vehicular parking, just parking for cycles. Access for pedestrians, cyclists and for waste disposal, would be along the south-western gable of Block B via a path of around 2 metres width.
16. To accommodate the third-floor within the roof space, the eaves level of Block A would be at a higher level than that at No 37. The suggested materials and use of two-storey bay windows would at first appear acceptable. However, to cater for the six flats, the floor-to-floor heights of Block A would be significantly less than those in No 37, resulting in a mismatch in window alignments between adjacent properties. Further, to minimise the overall height of Block A resulting from its three-storey nature, the roof configuration, both to its main roof and that of the rear offshoot, have been proposed in a double gable with an internal valley. This is at odds to the general pattern of roofs on other properties within the area and the CA.

17. I find the relationship of Block A with the property at No 1 would be extremely incongruous in the Denmark Road street scene; the eaves of Block A would tower above the eaves of No 1. This relationship would be further visible in views from Cranes Mews, where the three-storey rear offshoot form of Block A would dominate the rear of No 1, which would be exacerbated by the fall in ground levels between properties. The mass and proximity of the rear offshoot of Block A would also be very dominant in views from No 2, which would only be separated from it by around 8 metres, and would be a full storey lower in height.
18. The pattern of double gable and flat valleys has also been proposed in Block B to the rear of the site. Whilst its relationship to the property at No 2 would be less incongruous, the very close relationship between Block A and Block B would be evident, as would the somewhat forced fenestration positioning proposed in an attempt to mitigate overlooking and privacy issues, which would be at odds with the character of development in the area. Whilst the existing building has impacts on views from Cranes Mews, I find the proposal would not represent an improvement, particularly in the height and mass presented in views from this vantage point.
19. Accordingly, I find that the indicative proposals are illustrative of a cramped form of overdevelopment, which would be detrimental to the character and appearance of the surrounding area. It would therefore harmfully fail to preserve or better reveal the significance of the setting of the designated heritage asset of the adjacent Heckford Park Conservation Area. For the purposes of the Framework, I would assess this harm as being at the lower end of the less than substantial harm range.
20. Where harm to designated heritage assets has been found to be less than substantial, paragraph 215 of the Framework requires that this harm is weighed against the public benefits of the proposal. I will weigh this harm to the CA against the public benefits of the proposal later in my planning balance.
21. For the above reasons, I conclude the proposal would conflict with Policies PP27 and PP28 of the Local Plan and with Chapter 16 of the Framework. These require, among other things, development to reflect or enhance local patterns of development and neighbouring buildings in layout, built site coverage, scale, height and visual impact, and to conserve the historic environment.

Living conditions

22. The illustrative plans submitted with the application provide floor plans with layouts for individual apartments. Examining these plans, it is evident that many of the flats would only just be compliant with the minimum space standards laid down in the Technical Housing Standards - Nationally Described Space Standard (the NDSS), the requirement for a 1-bedroom 2-person flat being 50 Sq.m. and for a 1-bedroom 1-person flat being 37 Sq.m. (subject to it having a shower room not bathroom). The proposed flats could, therefore, not be described as spacious, but would just meet the required minima.
23. The proposals illustrate a possible design to provide 9 flats on the site. This is significantly less than the 20 homes that would be suggested by the targeted density of development of Policy PP2 of the Local Plan, for the area of site and its sustainable location. However, the site is within an area where it is very closely surrounded by other residential properties which are mostly two-storey dwellings, with development right up to the site's boundary on three sides. This places severe restriction on what may be acceptable in terms of the density of development, due

to the potential harms to the living conditions of occupiers of surrounding properties. This is recognised in Policy PP2 by the density needing to be examined on a case-by-case basis.

24. The indicative proposals demonstrate significant manipulation of the design to try and provide adequate privacy between occupiers of Block A and Block B. This has resulted in patterns of fenestration, such as high-level slot windows, larger areas of blank walls with roof windows introduced instead of within walls, to prevent direct overlooking between the two blocks. This would result in occupiers of the appeal flats having poor access to natural light and very poor outlook in many cases, resulting in poor living conditions.
25. However, I find the proposals have failed to consider their potential impact on the occupiers of surrounding properties. The bedroom windows to the first floor of the Block A flats would be little more than 8 metres from the first-floor windows of the property at No 2. The offset angle on plan would be less than 45 degrees, such that there would be severe overlooking, harmfully affecting the privacy of both the existing occupiers of No 2 and those of the appeal properties.
26. The Council have raised issue with the lack of external amenity space for future occupiers of the proposal. Having examined the evidence before me and having reviewed the location of the appeal site and its proximity to surrounding amenity facilities, I find that it would not be uncommon for occupiers of flats within a site within close proximity to the urban centre of a town such as Poole, to have more limited private amenity space. Indeed, the density of homes proposed in Policy PP2 for sites, like the appeal site, located within sustainable transport corridors, district & local centres, would leave little opportunity for any significant amounts of private external amenity space for occupants of flat developments, other than small balconies, and that would be on a case-by-case basis.
27. Occupants of the appeal site would have some access to limited external amenity space, but they would also have access to significant external amenity space within a short walking distance to communal park, sports and shore front recreational sites, together with sustainable access to the recreational facilities of the town centre. This would be compensatory for the more limited private amenity space on the site.
28. I therefore find that the indicative plans submitted with the proposal, illustrate that the level of development proposed, would result in cramped, over-development of the site. It would not be capable of providing acceptable living conditions for occupiers of the proposed flats, through inadequate outlook, light and privacy. I find it would also harmfully affect the privacy of occupants of surrounding properties, notably No 2 Cranes Mews, through overlooking, which would also be experienced reciprocally by occupants of the appeal flats.
29. For the above reasons, I conclude the proposal would conflict with Policies PP27 and PP28 of the Local Plan and with paragraph 135 of the Framework. These require, among other things, development to reflect or enhance local patterns of development and neighbouring buildings in layout, built site coverage, scale and height and to not result in harmful impact upon amenity for both local residents and future occupiers.

Effect on Designated Habitats Sites

30. The appeal site lies within the vicinity (beyond 400m but within 5km) of the Dorset Heathlands SPA (Special Protection Area), Dorset Heathlands Ramsar Site and the Dorset Heaths SAC (Special Area of Conservation) These Habitat Sites are all recognised for their national and international importance for nature conservation. They host protected priority habitats and species including Hen-harrier, Merlin, European nightjar, Woodlark and Dartford warbler, as well as other typical species of forest and heath areas.
31. The appeal site also lies within the vicinity of the Poole Harbour SPA, SSSI and Ramsar Site's. These Habitat Sites are recognised for their national and international importance for nature conservation. They host protected priority habitats and species including Little egret, Eurasian spoonbill, Common shelduck, Pied avocet, Black-tailed godwit, Mediterranean gull, Sandwich tern and Common tern, as well as other typical species of tidal mudflats and saltmarshes, reedbeds, freshwater marshes and wet grasslands.
32. Evidence shows that these protected Habitat Sites are under significant pressure from an increasing number of people living nearby. As the population grows, urbanisation and increased visitor number effects from human pressures and damage caused by domestic pets have the potential to cause ongoing adverse effects on the protected habitats and species.
33. The Dorset Heathlands Planning Framework 2020-2025 – Supplementary Planning Document (SPD), sets out a strategy for the avoidance and mitigation of impacts of new residential development upon the Dorset Heathlands, through financial contributions from developers for mitigation schemes within the area. The SPD defines the mitigation process and contribution requirements for different forms of development.
34. Similarly, the Poole Harbour Recreation 2019-2024 – Supplementary Planning Document (SPD), sets out a strategy for the avoidance and mitigation of impacts of new residential development upon Poole Harbour, including tourism development, through financial contributions from developers for mitigation schemes within the area. The SPD defines the mitigation process and contribution requirements for different forms of development.
35. The appeal proposal would create 9 additional residential units, which would, without mitigation and in combination with other development proposed in the area, be likely to have a significant effect on the nearby European Habitat sites. It would therefore be subject to the requirements of the SPD's for financial contributions towards mitigation.
36. These contributions for mitigation would normally be secured through a signed s106 agreement with the Council or Unilateral Undertaking (UU) from the appellant. The appellant submitted a signed and dated UU with their final comments. However, the submitted UU utilised the Council's standard Fast Track UU form, intended for use only during the planning application process. The submitted UU specifically notes that it is related to a planning application, which it references. Paragraph 4 of the UU notes, at sub-paragraph (a), that the deed shall be determined and have no further effect if the Planning Permission is refused. The UU therefore carries no legal weight as it is now determined by refusal of the planning permission.

37. In the absence of a valid signed s106 agreement with the Council or Unilateral Undertaking (UU) from the appellant, which would secure mitigation, a Likely Significant Effect (LSE) of the appeal development on the European Habitat Sites cannot be ruled out.
38. For the above reasons, I conclude the development would be contrary to Policies PP32 and PP39 of the Local Plan, which require, among other things, that development protects all types of nature conservation, habitats and internationally designated sites, and protects the Dorset Heathlands and Poole Harbour through the provision of mitigation measures. The development would also be contrary to the policies within Chapter 15 of the Framework, which require, among other things, that development protects and enhances biodiversity.

Other Matters

39. I have had regard to all evidence before me, and the comments made by a significant number of residents of the surrounding area. Whilst I acknowledge the concerns of residents in relation to the lack of parking provision with the proposal, I am mindful of local and national policy, which seeks to encourage the use of sustainable means of transport. Accordingly, Policies PP34 and PP35 of the Local Plan, and the Council's Parking Standards - Supplementary Planning Document (the SPD), which identifies that for sites defined within Zone A of the Parking SPD, they are not required to provide parking, subject to providing adequate cycle storage and pedestrian access. As the proposal would meet these requirements, I do not find it would be contrary to Policies PP34 and PP35 of the Local Plan.

Planning Balance

40. The Council cannot demonstrate a 5-year Housing Land Supply (5YHLS) as required by the National Planning Policy Framework (the Framework). The Council have stated that as of 1 April 2024, they had a housing land supply figure of 2.1 years, allowing for a 20% buffer, which is a serious deficit.
41. In accordance with the Framework, the less than substantial harm to the designated heritage asset (the CA) must be weighed against the public benefits of the proposal. It would provide 9 new dwellings, which in the context of the Council's serious 5YHLS deficit, would make a valuable but moderate contribution. There would be similar moderate public benefits from the contribution to the local economy during construction, and to the support for local services from future occupiers. The proposal would be in a sustainable transport location, and the likely speed of build-out of such a smaller site is acknowledged in the Framework.
42. Cumulatively, the public benefits of the proposal are moderate. They are therefore insufficient to provide the clear and convincing justification to override the less than substantial harm to the CA, which the Framework requires me to assign great weight to its conservation.
43. Given the shortfall in housing land supply there is no dispute that, owing to footnote 8, paragraph 11(d) of the Framework is engaged. Paragraph 11(d)(i) indicates that permission should be granted unless the application of policies in this Framework that protect areas or assets of particular importance provides a strong reason for refusing the development proposed. Footnote 7 of the Framework lists protected Habitats sites and designated heritage assets as such assets of importance.

44. I have concluded that the proposal would result in likely significant harmful effect to a protected European Habitat site, which on its own, provides a strong reason for refusing the development. Paragraph 195 of the Framework confirms that the presumption in favour of sustainable development does not apply in these circumstances. Having undertaken the necessary heritage balance, I have also found the proposal would cause unjustified harm to the significance of the CA, as a result of development within its setting. Hence the proposal would conflict with national policy to protect designated heritage assets. This provides a further strong reason for refusal of the proposal. Consequently, irrespective of the level of the Council's 5-YHLS shortfall, paragraph 11(d)(ii) is not engaged, and the proposal does not benefit from the presumption in favour of sustainable development in this instance.
45. In considering the broader planning balance, I have also found that the proposal would create undue harm to the character and appearance of the area, and, as a result of over-development of the site, it would not provide adequate living conditions for future occupiers in terms of outlook, light and privacy, and that there would be harm to the privacy of occupiers of neighbouring properties and future occupiers of the appeal development. I have therefore, found it would conflict with the development plan policies in these regards, and with the development plan when considered as a whole. These conflicts attract full weight in the planning balance. They are also consistent with the Framework.

Conclusion

46. For the reasons set out above, I conclude that the appeal proposal would be contrary to the development plan, read as a whole, and that the material considerations I outline above, including policies in the Framework, would not outweigh that conflict. Therefore, the appeal is dismissed.

David Kay

INSPECTOR